

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

SYDIA LIMEHOUSE and
DANIELLE DAVENPORT,

Plaintiffs,

v.

THE CITY OF NEW YORK, New York
City Police Department ("NYPD") Officer
SETURAH BLEASE (Shield No. 21151);
NYPD Officer LIAM KITE (Shield
No. 23080); NYPD Officers John and Jane
Does Nos. 1-4,

Defendants.

INDEX NO.

SUMMONS

Plaintiffs designate New York County as the
County of Venue based on the location where
the claim arose.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiffs' attorney, at
the address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer
must be served within 20 days after such service of the summons, excluding the date of service.

If the summons was not personally delivered to you within the State of New York, the
answer must be served within 30 days after service of the summons is complete as provided
by law.

If you do not serve an answer to the attached complaint within the applicable time
limitation, a judgment may be entered against you, by plaintiffs, for the relief demanded in
the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for
the County of New York. This action is brought in New York County because it is the place
in which the claim arose.

Dated: September 14, 2023
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

By: 

David B. Rankin

Deema Azizi

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
SYDIA LIMEHOUSE and
DANIELLE DAVENPORT,

Plaintiffs,

**VERIFIED COMPLAINT AND
DEMAND FOR A JURY TRIAL**

v.

Index No.

THE CITY OF NEW YORK, New York City Police
Department ("NYPD") Officer SETURAH BLEASE
(Shield No. 21151); NYPD Officer LIAM KITE
(Shield No. 23080); NYPD Officers John and Jane
Does Nos. 1-4,

Defendants.
----- X

Plaintiffs Sydia Limehouse ("Ms. Limehouse") and Danielle Davenport ("Ms. Davenport"),
through their attorneys, Beldock Levine & Hoffman, LLP, as and for their complaint, do hereby
state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate Plaintiffs' rights under the Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with claims under the laws of New York State and New York City.

2. Plaintiffs' rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis assaulted, seized, detained, arrested, and searched them. By reason of defendants' actions, including defendants' detention and, effectively, arrest of Plaintiffs without reasonable suspicion or justification, and subjecting Plaintiffs to unreasonable and unlawful searches and seizures, Plaintiffs were deprived of their constitutional, statutory, and common law rights and suffered physical, emotional, psychological, and economic

injury.

3. Plaintiffs also seek an award of compensatory and punitive damages and attorneys' fees and costs.

JURISDICTION AND VENUE

4. The action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under the laws of New York State and New York City.

5. Pursuant to New York State General Municipal Law § 50-e, Plaintiffs filed timely Notices of Claim with the New York City Comptroller, and the Comptroller designated Plaintiff Sydia Limehouse's claim as number 2022PI025871 and Plaintiff Danielle Davenport's claim as number 2022PI025870.

6. Plaintiffs' claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of New York because the incident took place in New York County, and defendants regularly and substantially conduct business in New York County. C.P.L.R. § 503 (a).

8. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

9. Plaintiff SYDIA LIMEHOUSE is and was at all times relevant to the action, a resident of New York County in the State of New York.

10. Plaintiff DANIELLE DAVENPORT is and was at all times relevant to the action, a resident of New York County in the State of New York.

11. Defendant the CITY OF NEW YORK ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police

department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. New York City Police Department (“NYPD”) Officer SETURAH BLEASE (Shield No. 21151); NYPD Officer LIAM KITE (Shield No. 23080), and NYPD Officers John and Jane Does Nos. 1-4 (referred to collectively as the “Individual Defendants”) are and were, at all times relevant herein, officers, employees, and agents of the NYPD.

13. The true names and shield numbers of defendants NYPD Officers John and Jane Does Nos. 1-4 are not currently known to Plaintiffs.¹ However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in the action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiffs intend to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants become known to plaintiffs and (b) that the Law Department should immediately begin preparing their defense in the action.

14. The Individual Defendants are being sued in their individual capacities.

15. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as

¹ By identifying said defendants as “John Doe” or “Richard Roe,” plaintiffs are making no representations as to the gender of said defendants.

officers, employees and agents of the NYPD.

16. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiffs' rights.

17. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

JURY DEMAND

18. Plaintiffs demand a trial by jury in this action on each one of their damage claims.

STATEMENT OF FACTS

19. On June 16, 2022, at about 5:00 p.m., at or around 372 Central Park West, in the County of New York, members of the New York Police Department ("NYPD") assaulted and detained Plaintiffs Sydia Limehouse and Danielle Davenport without reasonable suspicion, probable cause, or justification.

20. Ms. Davenport was driving in Manhattan, in the vicinity of Central Park West, and Ms. Limehouse sat in the front passenger seat, when NYPD officers directed Ms. Davenport to pull over the vehicle.

21. Ms. Davenport complied and safely stopped the vehicle, and two police officers, namely Defendants NYPD Officer BLEASE and Officer KITE, approached the vehicle.

22. Both Defendants BLEASE and KITE had their guns drawn.

23. Defendant Officer BLEASE pointed her gun at Ms. Davenport, with a shaking hand, and a male officer (Defendant Officer John Doe 1) took hold of Defendant BLEASE's arm to stop the shaking.

24. Defendant Officer KITE pointed his gun directly at Ms. Limehouse and yelled at her to "get the fuck out of the car."

25. Upon information and belief, the Individual Defendants directed Plaintiff Davenport to pull over the vehicle based on the Plaintiffs' actual and/or perceived race and/or other protected status.

26. NYPD officers used unwarranted and excessive force against Plaintiffs.

27. As a result of the officers' unlawful conduct, Plaintiffs experienced deprivation of liberty, injury, pain, suffering, humiliation, extreme mental and emotional anguish, financial and other injury.

28. The NYPD members whose actions caused injury to Plaintiffs were acting under color of law as agents, employees and/or officers of Defendant THE CITY OF NEW YORK.

**FIRST CLAIM FOR RELIEF
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983**

29. Plaintiffs reallege and incorporate by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

30. In committing the acts and omissions complained of herein, the individual defendants acted under color of state law to deprive Plaintiffs of certain constitutionally protected rights under the First, Fourth, and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from unreasonable search and seizure;
- b. the right to be free from unlawful detention and arrest without probable cause;
- c. the right to be free from excessive force;
- d. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention Plaintiffs were aware and to which they did not consent;
- e. the right to be free from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants;

- f. the right to be free from malicious prosecution; and
- g. the right to equal protection, privileges, and immunities under the laws;

31. In committing the acts and omissions complained of herein, the Individual Defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

32. As a direct and proximate result of the Individual Defendants' deprivation of Plaintiffs' constitutional rights, Plaintiffs suffered the injuries and damages set forth above.

33. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

34. The unlawful conduct of the Individual Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CLAIM FOR RELIEF
ASSAULT AND BATTERY

35. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

36. By the actions described above, Defendants did inflict assault and battery upon Plaintiffs.

37. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

38. The Individual Defendants assaulted Plaintiffs without cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers,

and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiffs pursuant to the state common law doctrine of *respondeat superior*.

39. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

THIRD CLAIM FOR RELIEF
UNLAWFUL DETENTION, FALSE ARREST,
AND FALSE IMPRISONMENT

40. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

41. By the actions described above, Defendants caused to be unlawfully detained and falsely arrest or unlawfully detained and falsely arrested Plaintiffs, without reasonable suspicion or probable cause, illegally and without a warrant, and without any right or authority to do so.

42. Defendants caused Plaintiffs to be unlawfully detained, falsely arrested, and falsely imprisoned or unlawfully detained, falsely arrested, and falsely imprisoned Plaintiffs without legal justification, without the consent of Plaintiffs, and while Plaintiffs were aware of such detention and imprisonment.

43. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

44. The individual defendant officers detained, arrested, and imprisoned Plaintiffs without reasonable suspicion or probable cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result,

Defendant CITY OF NEW YORK is liable to Plaintiffs pursuant to the state common law doctrine of *respondeat superior*.

45. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

FOURTH CLAIM FOR RELIEF
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

46. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

47. By the actions described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Plaintiffs. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

48. The individual defendant officers acted with extreme and outrageous conduct while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiffs pursuant to the state common law doctrine of *respondeat superior*.

49. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

FIFTH CLAIM FOR RELIEF
NEGLIGENCE

50. Plaintiffs incorporate by reference the allegations set forth in all preceding

paragraphs as if fully set forth herein.

51. The defendants, jointly and severally, negligently caused injuries, emotional distress and damage to Plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

52. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are thus directly chargeable to Defendant City of New York under the state law doctrine of *respondeat superior*.

53. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

SIXTH CLAIM FOR RELIEF
BIAS-BASED PROFILING

54. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

55. By initiating law enforcement action against Plaintiffs based on their actual and/or perceived race and/or other protected status, rather than Plaintiffs' behavior or other information linking them to suspected unlawful activity, Defendants and Defendants' agents engaged in bias-based profiling in violation of N.Y.C. Admin. Code § 14-151(c)(1)(i) and (ii).

56. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat*

superior.

57. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

SEVENTH CLAIM FOR RELIEF
VIOLATIONS OF N.Y.C. ADMINISTRATIVE CODE § 8-801, et. seq.

58. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

59. By the actions described above, Defendants violated Plaintiffs' rights to be secure in their person, papers and effects against unreasonable searches and seizures, and to be secure against the use of excessive force, in violation of N.Y.C. Administrative Code § 8-802, and Plaintiffs seek redress under N.Y.C. Admin Code § 8-801, *et seq.*

60. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

61. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

EIGHTH CLAIM FOR RELIEF
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION

62. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

63. Defendant THE CITY OF NEW YORK, by and through its employees, agents

and/or officers subjected Plaintiffs to the foregoing acts and omissions without due process of law, thereby depriving Plaintiffs of their rights, privileges, and immunities secured by Article 1, §§ 8, 9, 11, and 12 of the New York State Constitution, including, without limitation, the following deprivations of rights, privileges, and immunities:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from unlawful detention and arrest without probable cause;
- iii. freedom from false imprisonment and from being wrongfully detained without cause or legal justification, and of which Plaintiffs were aware and did not consent;
- iv. freedom from deprivation of liberty without due process of law; and
- v. right to equal protection of the law.

64. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

65. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

NINTH CLAIM FOR RELIEF
RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK

66. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

67. The conduct of the individual defendants alleged herein, occurred while he or she was on duty and in uniform, and/or in and during the course and scope of his or his duties and functions as NYPD officers, and/or while he or she was acting as an agent and employee of

defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to Plaintiffs pursuant to the state common law doctrine of *respondent superior*.

68. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

TENTH CLAIM FOR RELIEF
NEGLIGENT HIRING, SCREENING, RETENTION

69. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

70. Defendant THE CITY OF NEW YORK negligently hired, screened, and retained the NYPD officers who engaged in the conduct underlying Plaintiffs' claims. The acts and conduct of Defendant in negligently hiring, screening, and retaining its police officers were the direct and proximate cause of injury and damage to Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

71. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondent superior*.

72. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

WHEREFORE, Plaintiffs demand judgment against Defendants and pray for relief as

follows:

- a. that they be compensated for violation of their constitutional rights, deprivation of liberty, physical injury, pain, suffering, mental and emotional anguish and humiliation; and
- b. that they be awarded punitive damages; and
- c. that they be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. for such other further and different relief as to the Court may deem just and proper.

Dated: September 14, 2023
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

By: 

David B. Rankin
Deema Azizi

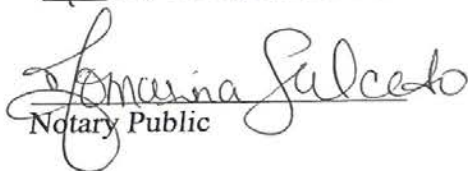
VERIFICATION

STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

Danielle Davenport, being duly sworn, deposes and says that deponent is a Plaintiff in the within action; that she has read the foregoing Complaint and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes it to be true.


Danielle Davenport

Sworn to before me this
14th day of September 2023


Notary Public

